

attached to the Complaint. Each Operating Agreement provides that the “United States Arbitration Act shall govern the interpretation, enforcement, and proceedings pursuant hereto.” The Court finds that the FAA governs the Arbitration Agreements.

Plaintiff contends that the arbitration agreement is not applicable to the controversies at issue in this case and that the delegation clause does not affect the court’s authority to determine the arbitrability of statutory claims.

“The arbitrability of a dispute may itself be subject to arbitration if the parties have so provided in their contract.” *McCarroll v. Los Angeles County Dist. Council of Carpenters* (1957) 49 Cal.2d 45. “Because the parties are the masters of their collective fate, they can agree to arbitrate almost any dispute—even a dispute over whether the underlying dispute is subject to arbitration.” *Bruni v. Didion* (2008) 160 Cal.App.4th 1272. “There are two prerequisites for a delegation clause to be effective. First, the language of the clause must be clear and unmistakable.” *Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231. “Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability.” *Id.*

Here, the Operating Agreements provided by Plaintiff provide evidence of electronically signed agreements that cover “Any dispute, controversy, or claim arising out of or relating to this Agreement, including any determination of the scope of applicability of this Section 11.12.2, shall be finally settled by arbitration administered by the American Arbitration Association (“AAA”) in accordance with its Commercial Arbitration Rules, the judgment on the award rendered by the arbitral tribunal may be entered in any court having jurisdiction thereof.” The parties dispute whether Plaintiff’s causes of action “arise out of or relate to” the agreement. The Operating Agreements clearly and unmistakably provide that an arbitrator is delegated to determine the scope of applicability of the arbitration sections, and thus what causes of action may or may not be subject to arbitration. Plaintiff has not alleged that the delegation clause is revocable under the defenses of fraud, duress, or unconscionability. The Court finds the delegation clauses are effective.

In light of the delegation clauses, the Court need not consider Plaintiff’s arguments regarding whether the arbitration clause applies to Plaintiff’s particular causes of action.

The Petition is **GRANTED**. The parties are compelled to arbitration and the matter is ordered stayed pending arbitration. A proposed order was lodged with the Court and will be executed. The Court sets this matter for **Monday, November 2, 2026, at 9:00 a.m. in Department 63** for review regarding status of arbitration. The hearing on the request for preliminary injunction set for April 27, 2026, the mandatory settlement conference set for November 30, 2026 and the trial set for February 2, 2027 are **VACATED**. In light of the stay of the case, the parties should be prepared to address at the hearing the Court’s continued authority to oversee the actions of a receiver.

STATE OF CALIFORNIA, BY AND THROUGH THE CALIFORNIA DEPARTMENT OF FORESTRY AND FIRE PROTECTION VS. BORGNA

CASE NUMBER: 25CV-0208978

Tentative Ruling on Demurrer to Cross-Complaint: Plaintiff/Cross-Defendant State of California, by and through California Department of Forestry and Fire Protection (hereinafter “Cross-Defendant”) generally demurs to the Defendant/Cross-Complainant Guiliano Borgna’s (hereinafter “Cross-Complainant”) Cross-Complaint on the grounds that both causes of action fail to state sufficient facts. Specifically, Cross-Defendant alleges that Cross-Complainant does not contain sufficient facts to establish water rights or an easement on state lands.

Procedural Defect: As a preliminary matter, the Court notes that the opposition was filed on April 14, 2026, only four court days prior to the hearing. CCP § 1005 requires an opposition to have been filed nine court days prior to the hearing. The opposition is untimely. The Court will exercise its discretion and consider the late filed opposition.

Meet and Confer: CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Sophia Retchless indicates compliance with this requirement.

Merits. A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

The Cross-Complaint alleges two causes of action; one for quiet title; and the other for declaratory relief. The Cross-Complaint contains very few specific factual allegations but appears to base the quiet title cause of action on the existence of a prescriptive or implied easement. The party claiming a prescriptive easement must prove use of the property which was open, notorious, continuous, and adverse for an uninterrupted period of five years. *Warsaw v. Chicago Metallic Ceilings, Inc.* (1984) 35 Cal.3d 564, 570. The Cross-Complaint contains conclusory allegations that the use was open, notorious, continuous, and adverse for a period of five years but provides no specific facts. The Court cannot consider conclusory statements. *Hood, supra* 65 Cal.App.4th at 438. The Court finds that the Cross-Complaint fails to allege sufficient facts to support a claim of a prescriptive easement.

As for the purported implied easement, the Cross-Complaint suffers from the same defects. It provides only conclusory statements but no specific facts. The Court cannot determine if the Cross-Complainant is requesting an implied easement by reservation or an implied conveyance. The Court finds that the Cross-Complaint fails to allege sufficient facts to support a claim of an implied easement by reservation or by implied conveyance.

As for the declaratory relief cause of action, the Court finds it also fails to state sufficient facts. A declaratory relief cause of action requires an “actual controversy relating to the legal rights and duties between the respective parties....” CCP § 1060. Here, the declaratory relief is based on a claim or interest in the real property at issue. For the reasons noted above, Cross-Defendant has failed to allege sufficient facts to support a quiet title claim for an easement. Without a valid claim, there is no actual controversy.

The demurrer is **SUSTAINED** with leave to amend. Cross-Complaint is granted leave to file an Amended Cross-Complaint within 10 days of service of the notice of entry of order. A proposed order was lodged with the Court which will be modified to conform to the Court’s final ruling.

WELLS FARGO BANK, N.A. VS. ZUMSTEG

CASE NUMBER: 25CVG-01553

Tentative Ruling on Motion for Judgment on the Pleadings: Plaintiff Wells Fargo Bank, N.A. moves for judgment on the pleadings pursuant to CCP § 438. Despite being properly noticed, Defendant Lucas J Zumsteg did not file an Opposition.

Meet and Confer. Before filing a motion for judgment on the pleadings, the moving party shall meet and confer in person, by telephone, or video conference with the opposing party. CCP § 439(a). Plaintiff has provided evidence that a letter was sent to Defendant informing Defendant Plaintiff’s intention to move for judgment on the pleadings. While the meet and confer efforts were not in person, by telephone, or video conference as required, a determination by the Court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion for judgment on the pleadings. CCP § 439(a)(4).